

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of
Suspension of:**

GEORGE MURIEL, Moving Party,

A Permanent Certificated Employee,

and

MONTEBELLO UNIFIED SCHOOL DISTRICT,

Responding Party.

OAH No. 2024120266

**ORDER GRANTING MOTION FOR IMMEDIATE REVERSAL OF
SUSPENSION**

On January 3, 2025, Julie Cabos Owen, Administrative Law Judge (ALJ), Office of Administrative Hearings (OAH), held a videoconference hearing on the motion filed by George Muriel for immediate reversal of suspension (Motion). Carlos R. Perez, Attorney at Law, represented moving party, George Muriel (Employee). Marina L. Ramirez, Attorney at Law with Alvarez-Glasman & Colvin, represented responding party, Montebello Unified School District (District).

On November 12, 2024, the District filed a Statement of Charges (SOC) against Employee and immediately suspended him without pay pending the outcome of its action to dismiss him. The alleged legal bases for the suspension under Education Code section 44939 are: immoral conduct and willful refusal to perform regular assignments without reasonable cause as prescribed by reasonable rules and regulations of the employing school district. (The SOC also alleges the following grounds for dismissal under Education Code section 44932: dishonesty; evident unfitness for service; and persistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed by the State Board of Education or the school district.)

Unlike its other alleged causes for dismissal and suspension, the SOC does not specify what alleged conduct constitutes "willful refusal to perform regular assignments without reasonable cause." The SOC contains only one reference to this legal cause for suspension. In the second paragraph of its Notice, the SOC states:

PLEASE TAKE FURTHER NOTICE that the District has charged [Employee] with "immoral conduct" and "willful refusal to perform regular assignments without reasonable cause, as prescribed by reasonable rules and regulations of the employing school district," among other things, and that [Employee] will therefore remain on a suspension without pay pursuant to Education Code section 44939.

(SOC, p. 1.)

In the paragraph following the Notice, the SOC specifies, "This Statement of Charges is based upon the following causes," and it lists immoral conduct, dishonesty,

evident unfitness for service, and persistent violation of or refusal to obey the school laws. "Willful refusal to perform regular assignments without reasonable cause" is not among the listed causes.

On December 7, 2024, Employee filed the Motion seeking the immediate reversal of his unpaid suspension. Employee contends the charges in the SOC do not constitute immoral conduct and the District failed to meet the statutory requirements of Education Code section 44939. Employee does not address "willful refusal to perform regular assignments without reasonable cause" in his Motion.

On December 23, 2024, the District filed its opposition to the Motion. The District maintains that both immoral conduct and "willful refusal to perform regular assignments without reasonable cause" are sufficiently pled to establish cause for immediate suspension.

On December 27, 2024, Employee filed his Reply. He maintains the District has not charged him with "willful refusal to perform regular assignments without reasonable cause." Employee further maintains, even if "willful refusal to perform regular assignments without reasonable cause" were part of the charges, the conduct alleged in the SOC does not constitute a willful refusal by Employee to perform regular assignments, and therefore, the District has failed to satisfy Education Code section 44939.

The ALJ reviewed and considered the SOC, the parties' written submissions, and the oral argument made during the hearing on the Motion. The Motion is granted as set forth below.

Motions for Immediate Reversal of Suspension

Education Code section 44939, subdivision (b), provides that a school district may immediately suspend a permanent certificated employee who has been charged with, among other things, immoral conduct or willful refusal to perform regular assignments without reasonable cause as prescribed by reasonable rules and regulations of the State Board of Education or the employing school district. Education Code section 44939, subdivision (c)(1), allows a suspended employee to file a motion for review of the suspension, and review of that motion "shall be limited to a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section."

A motion such as the current Motion, made pursuant to Education Code section 44939, subdivision (c)(1), is analogous to a demurrer because the properly pleaded facts must be accepted as true for purposes of resolving the motion. However, the ALJ need not accept "contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Additionally, as with a demurrer, the Motion can be granted if the District's "conclusory characterization of [Employee's] conduct as intentional, willful and fraudulent" is "patently insufficient." (See e.g., *Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.)

Willful Refusal to Perform Regular Assignments without Reasonable Cause

In analyzing whether cause exists for Employee's immediate suspension under Education Code section 44939, subdivision (b), for "willful refusal to perform regular assignments without reasonable cause," a comparison to Education Code section 44932, subdivision (a), is informative. Education Code section 44932, subdivision (a)(8)

(persistent violation of, of or refusal to obey, school laws or the district's reasonable regulations), authorizes a teacher's dismissal, but not immediate unpaid suspension. Education Code section 44939, subdivision (b), allows immediate suspension only if the refusal to perform regular assignments was "willful." The statute's use of the words "willful refusal" rather than "persistent violation" indicates that, although repeated performance failures may establish grounds for dismissing a teacher under Education Code section 44932, such continuing failures are not grounds for immediate suspension under Education Code section 44939.

The Education Code, in creating the separate grounds and procedures for dismissal versus immediate suspension, contemplates a distinction between two types of cases. In narrowing the substantive grounds for immediate suspension and creating additional due process protections for the employee, Education Code section 44939, subdivision (b), requires a higher threshold to justify immediate suspension than the threshold for dismissal set forth in Education Code section 44932, subdivision (a).

To establish grounds for immediate suspension under Education Code section 44939, Employee's refusal to perform his regular assignment must have been "willful." In the context of a public employee's insubordination or "willful" misconduct, the term insubordination "carries a volitional coloration which excludes the notion of accidental or even negligent conduct. . . [and] insubordination, equally with willful misconduct, requires proof of intent or willfulness. The latter elements imply that the person knows what he is doing and intends to do what he is doing." (*Coomes v. State Personnel Bd.* (1963) 215 Cal. App. 2d 770, 775.) Consequently, a willful refusal to perform a regular assignment must be more than an unsatisfactory, unprofessional, negligent, or even persistent failure to perform a regular assignment. Instead, it must be an intentional, volitional refusal to perform any part of a regular assignment.

The SOC contains headings for four causes for dismissal and suspension (immoral conduct, dishonesty, evident unfitness, and persistent violation) under which the SOC alleges specific facts. The SOC does not have a separate heading for “willful refusal to perform regular assignments,” and it does not specify the conduct constituting “willful refusal to perform regular assignments.” The SOC contains only one legal citation to this cause for suspension in the second paragraph of its Notice. This single legal citation and the lack of clarity regarding what conduct constitutes Employee’s “willful refusal to perform regular assignments” provided meager notice to Employee and reduced the analysis of the sufficiency of the pleading to conjecture.

At the Motion hearing, District counsel cited conduct alleged in the SOC that purportedly constitutes Employee’s “willful refusal.” (SOC, pp. 13-17, paras. 24 and 26 to 34.) The SOC alleges, for example, beginning February 29, 2024, the District placed Employee on paid administrative leave during which he was required to be available by telephone during his normal work hours. He was relieved of all job duties and advised not to come to any District facility without first obtaining permission from the Director of Certificated Human Resources. Thereafter, the District initiated an independent investigation into Employee’s conduct. However, on April 24, 2024, Employee informed District staff he was refusing to meet with the District’s independent investigator, and he did not meet with the investigator. The SOC also alleges, on August 1, 2024, the District informed Employee he remained on paid administrative leave. Nonetheless, on August 8, 2024, Employee “showed up to the ‘Welcome Session’ at ELAC and breakout session for counselors at Eastmont Intermediate School.” (SOC, p. 17, para.33.) Additionally, on August 9, 2024, Employee “arrived at [Bell Gardens Intermediate School] and attended an employee meeting regarding the new school year.” (SOC, p.17, para 34.)

Even assuming the SOC meets minimal notice requirements, the SOC does not sufficiently plead Employee's willful refusal to perform regular assignments without reasonable cause. The SOC does not sufficiently allege that the meeting with the independent investigator was part of Employee's regular assignment such that his refusal to attend amounts to a "willful refusal to perform a regular assignment without reasonable cause." Additionally, the SOC does not sufficiently plead that Employee's attendance at the Welcome Session or the employee meeting constitutes a refusal to perform regular assignments without reasonable cause.

Based on the foregoing, the facts alleged in the SOC, if true, are insufficient to establish a basis for Employee's immediate suspension under Education Code section 44939, subdivision (b), for willful refusal to perform regular assignments.

Immoral Conduct

"Immoral conduct" has been defined as conduct "which is hostile to the welfare of the general public and contrary to good morals. [It] has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare." (*Board of Education of San Francisco Unified School Dist. v. Weiland* (1960) 179 Cal.App.2d 808, 811 [*Weiland*]; *Palo Verde etc. Sch. Dist. v. Hensey* (1970) 9 Cal. App.3d 967, 972 [*Hensey*].) The term "immoral conduct" has been used interchangeably with the term "moral turpitude" which in turn is sometimes used as synonymous with dishonesty or a high degree of unfairness. (*Weiland*, 179 Cal.App.2d 808, 811.)

The SOC alleges, among other things, that Employee used information obtained from Student #2 (approximately age 12) to reveal to Student #1 (age 11) that Student #1 was adopted. The SOC further alleges Employee researched "District databases with the information he had learned from Student #2, then contacted the biological parents of Student #1 and Student #2 before introducing them to one another. . . . [Employee] chose to omit Student #1's adoptive parents, who hold all legal and educational rights of Student #1, of his findings and intent to introduce the students to each other and their biological parents." (SOC, p. 18, para 3.) The SOC also alleges, Employee "entered to District premises on August 8 and 9, 2024 knowing he remained on paid administrative leave and intentionally returned without any permission to work with any students or employees." (SOC, p. 19, para. 9.)

Employee's alleged conduct, while inappropriate and inconsiderate, does not constitute conduct "indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare." Thus, Employee's alleged misconduct, as pleaded in the SOC, does not fall within the general definition of immoral conduct.

If Employee's misconduct did fall within the general definition of immoral conduct, further contextual analysis would be required. As noted in *Morrison v. State Board of Education* (1969) 1 Cal. 3d 214, 224 (*Morrison*), "immoral conduct" is not "considered in the abstract. It must be considered in the context in which the Legislature considered it, as conduct which is hostile . . . to the welfare of the school community." The *Morrison* court determined a teacher's actions cannot constitute immoral conduct or conduct involving moral turpitude unless those actions indicate his unfitness to teach. The *Morrison* court provided a list of possible factors to aid in

the analysis of whether conduct has a sufficient nexus with teaching to warrant adverse employment action. *Morrison* does not require that any or all factors be utilized and met. In this case, since Employee's alleged misconduct does not fall within the general definition of immoral conduct, the *Morrison* factors need not be addressed.

Based on the foregoing, the facts alleged in the SOC, if true, are insufficient to establish a basis for Employee's immediate suspension under Education Code section 44939, subdivision (b), for immoral conduct.

Disposition

Since the District has failed to plead facts which, if true, support a cause for immediate unpaid suspension for immoral conduct or for willful refusal to perform regular assignments without reasonable cause, the Motion for Immediate Reversal of Suspension is GRANTED.

The School District shall make the employee whole for any lost wages, benefits, and compensation within 14 days after service of this Order. (Ed. Code, § 44939, subd. (c)(5).)

IT IS SO ORDERED.

DATE: 01/07/2025



JULIE CABOS OWEN

Administrative Law Judge

Office of Administrative Hearings